

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF ALBANY

In the Matter of the Application of

ORGANIC BLOOMS, LLC, NIAGARA NUGGET,
LLC, BLACKMARK, LLC, and WINDWARD
MANAGEMENT, LLC
,

NOTICE OF MOTION

Index No. 904497-24

Petitioners-Plaintiffs,

*For a Judgment Pursuant to Article 78 of the Civil
Practice Law and Rules and a Declaratory Judgment
Pursuant to CPLR 3001,*

-against-

NEW YORK STATE CANNABIS CONTROL
BOARD and NEW YORK STATE OFFICE OF
CANNABIS MANAGEMENT,

Respondents-Defendants.

PLEASE TAKE NOTICE that upon the annexed Affirmation of Patrick McKeage, and the exhibits thereto, and the Memorandum of Law, defendants will move this Court at the Albany County Courthouse, 16 Eagle Street, Albany, New York, on July 3, 2026 at 9:30 a.m., or as soon thereafter as counsel can be heard, for an order pursuant to CPLR 3212 granting Respondents-Defendants' motion for summary judgment dismissing Petitioners-Plaintiffs' request for a declaratory judgment under CPLR 3001 in this hybrid special proceeding prejudice, and such other and further relief as may be just.

Pursuant to CPLR 2214, answering affidavits shall be served by later than seven days before the return date of this motion.

Dated: Albany, New York
June 12, 2026

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TO: Counsel of record (*Via NYSCEF*)